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Argument for Plaintiff in Error.

written statements. The introduction of evidence showing perjury in the final proofs was an attempt to prove the commission of another crime than that set out in the indictment. This independent offense, if committed at all, was committed by strangers to the conspiracy.

An officer, having by statute power to prescribe regulations for the conduct of his official business, may enforce the same by his official authority; but he cannot make the disregard of his requirements a criminal offense. *United States v. Eaton*, 144 U. S. 677; *United States v. Manion*, 44 Fed. Rep. 800; *United States v. Bedgood*, 49 Fed. Rep. 54; *United States v. Blasingame*, 116 Fed. Rep. 654; *United States v. Maid*, 116 Fed. Rep. 650; *United States v. Howard*, 37 Fed. Rep. 666.

The applicants had the right to sell, or to contract to sell, the lands at any time after application made, whether before or after final proof. The assumption to the contrary, upon which the whole theory of the possibility of perjury in the final proof is made to rest, is wholly unfounded upon any provision of the statute, contrary to the clear implication of the act of 1878, to the general principles of public-land law on the subject, and the decisions of this court.

In the absence of some express statutory inhibition, any right or claim under the public-land laws is assignable at any stage of its development. *Thredgill v. Pintard*, 12 How. 24; *Sparrow v. Strong*, 3 Wall. 97; *Lamb v. Davenport*, 18 Wall. 307.

A prohibition against such assignment will not be extended by construction to apply at a later stage of the proceeding than is made necessary by the words of the statute. *Myers v. Croft*, 13 Wall. 291. Nor can such a prohibition in another act in *pari materia* be read into an act in which no such prohibition is inserted by the legislature. *French v. Spencer*, 21 How. 228; *Maxwell v. Moore*, 22 How. 185.

The right to make a soldier's additional homestead entry is assignable, although an original homestead is not. *Webster v. Luther*, 163 U. S. 331; *Barnes v. Poirier*, 27 U. S. App. 500. See also *Adams v. Church*, 193 U. S. 510.